

PAID LEAVE OREGON

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POLICY OWNER: CHRO Policy Unit

DIVISION: Chief Human Resources Office

INTERNAL OR STATEWIDE POLICY: Statewide

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REFERENCE/AUTHORITY:

- ORS 657B.010 through ORS 657B.040; ORS 657B.060 through ORS 657B.080; ORS 657B.120; and ORS 657B.440; OAR 471-070-0001 through 471-070-8540

APPROVED SIGNATURE:



Kristin Jones, interim chief human resources officer

Statement

Oregon state government shall comply with provisions of the Paid Family and Medical Leave Insurance Act (Paid Leave Oregon) administered by the Oregon Employment Department.

Applicability

All employees, where not in conflict with an applicable collective bargaining agreement.

Forms

- [Paid Leave Oregon Model Notice](#)
- [Paid Leave Oregon Toolkit](#)

Definitions

Employee: A person holding a full or part time permanent, limited duration, temporary, seasonal, or academic position in state service

Also refer to State HR Policy 10.000.01, Definitions.

Policy

Paid Leave Oregon is administered by the Oregon Employment Department. Paid Leave Oregon will determine eligibility and approve or deny Paid Leave Oregon benefits. The State of Oregon, as an employer, shall comply with the provisions of Paid Leave Oregon.

1. Each state agency director or authorized designee administers State HR Policy 60.000.04 as the agency's policy. Compliance with the Paid Family and Medical Leave Insurance Act, known as Paid Leave Oregon, is mandatory.
2. All agencies, regardless of the number of employees, will pay the employer contributions to the Paid Leave Oregon insurance fund.
3. Employees will pay the employee contributions to the Paid Leave Oregon insurance fund through a payroll deduction.
4. Required posting: Agencies shall post the model notice poster in an accessible location at each worksite.
 - a. The model notice must be sent electronically to remote workers upon the start of any remote work.
 - b. The model notice poster must be sent to remote workers when updated or changed.
5. Employee notification requirement: Employees must provide at least 30 calendar days' notice to the agency before commencing family, medical or safe leave under Paid Leave Oregon, when foreseeable.
 - a. If the leave is not foreseeable, an employee must give verbal notice within 24 hours of the beginning of the leave and written notice within three days of the beginning of the leave.
 - b. Failure to notify the agency timely may result in a reduced Paid Leave Oregon benefit payment.
 - c. Employees are generally expected to follow agency call-in procedures.

6. Paid Leave Oregon will notify the agency of the number of days for which leave is approved.
7. Employees will notify the agency immediately of any change in Paid Leave Oregon status.
8. The agency may request additional information from the employee to include:
 - a. The type of leave they are taking (medical, family, safe)
 - b. Why they need to take the leave (their covered life event)
 - c. When and for how long they expect to take leave (this may be an estimate)
 - d. Periodic updates on the employee's status and the intention to return to work during a period of medical leave for the employee's own serious health condition.
9. Subject to approval by Paid Leave Oregon, an employee may take up to 12 weeks of Paid Leave Oregon within a benefit year.
 - a. An employee may receive an additional two weeks of Paid Leave Oregon for pregnancy-related conditions.
10. Paid Leave Oregon can only be taken in full day increments.
11. Paid Leave Oregon will run concurrently with FMLA, when applicable.
12. Paid Leave Oregon may not be taken concurrently with OFLA leave. OFLA leave is in addition to any leave granted under Paid Leave Oregon.
13. Use of Accrued Leave
 - a. Employees may choose to use sick, vacation, personal business, compensatory time, or straight time leave in any increment, up to their normally scheduled hours, or leave without pay while receiving Paid Leave Oregon.
 - b. Employees will be placed in a leave without pay status unless they notify their agency which accrued leave to use.
 - c. If an employee's Paid Leave Oregon application is denied, an employee shall not be required to go back and add leave accruals if they elected to take leave without pay at the time of application when the employee acted in good faith with a reasonable belief they were eligible for Paid Leave Oregon benefits.

- d. If an employee chooses to use accrued leave while a claim is pending or while receiving benefits, they may not retroactively change their accrued leave use to leave without pay.
14. Employees are eligible to request and use approved donated leave on days Paid Leave Oregon benefits are received.
15. Employees receiving Paid Leave Oregon who do not have 90 calendar days or more of state service and whose absences are not protected by FMLA and/or OFLA are not eligible for the job protection and continued core insurance coverage provided by Paid Leave Oregon as outlined in sections 16 through 18 of this policy.
16. Reinstatement rights: An agency restores an employee who returns from taking Paid Leave Oregon to the position of employment held by the employee when the leave began, regardless of if it has been renamed or reclassified. If the position no longer exists, an agency must return the employee to a vacant or not permanently filled equivalent position within 50 miles of their workplace with equivalent pay, benefits and other terms and conditions of employment.
- a. The following exceptions apply:
 - i. If an agency eliminates the employee's position through layoff, the agency treats the employee as if the employee had not taken Paid Leave Oregon, in the same manner as similarly situated employees, according to the agency's policy or applicable collective bargaining agreement.
 - ii. An agency restores an unclassified, temporary, or limited duration employee to the extent the employee's placement, appointment or position still exists.
 - iii. If an employee does not return from leave or is unable to perform an essential function of the position the employee held prior to the commencement of Paid Leave Oregon, with or without reasonable accommodation, the employer must follow applicable law, rule, policy, or collective bargaining agreement to determine appropriate action, which may, in some cases, include termination.
 - b. Before restoring an employee to a position after a period of medical leave under Paid Leave Oregon, an agency may require the employee to provide a certification from the employee's health care provider verifying the employee is able to resume work.

17. Core PEBB insurance: During months when an employee receives Paid Leave Oregon, the agency continues the employee's enrolled core benefits (medical, dental, and vision and basic employee-only life insurance).
- a. The agency pays its share of the core benefits.
 - b. The employee must pay their share of the premium payment and any surcharges related to their core benefits.
 - i. An employee may submit monthly payments to the agency for the employee portion of core benefits. A family member may arrange to submit monthly payments if the employee is incapacitated.
 - ii. An employee may choose to have the employee portion of core benefit premiums paid by the agency on their behalf during months an employee uses Paid Leave Oregon. Refer to the Oregon Accounting Manual for recovering payments made on behalf of the employee.
 - c. An employee may be required to reimburse an agency for the employee's portion if the employee fails to return to work, unless the reason for the employee's failure to return is a continuation, recurrence, or onset of a serious health condition of the employee or employee's family member, a continuation, recurrence, or onset of a serious illness or injury of a covered service member or other circumstances beyond the employee's control.
18. Optional PEBB insurances: If an employee works an insufficient number of hours in a month to cover their optional insurances receiving Paid Leave Oregon or is in leave without pay status, the employee must pay premiums for the optional PEBB insurances that may be continued.
- a. An employee may submit monthly payments to the agency for the continued optional insurance benefits.
19. PEBB Insurances after exhaustion of Paid Leave Oregon: (a) When an employee's Paid Leave Oregon end, all PEBB insurance coverage terminates when the employee, who is not in a current Affordable Care Act (ACA) Stability Period or protected by FMLA/OFLA, does not work enough hours in the month, uses insufficient paid leave, or fails to make a premium payment. Should the employee wish insurance to continue, they may self-pay some insurance premiums under COBRA. The employee receives information about self-paying insurance through a third-party administrator.
- a. Refer to the "Public Employees' Benefit Board FMLA-OFLA Benefit Matrix" for the effect on an employee's insurance when returning from leave.

20. Effect on seniority, salary increases and benefit service date: The receipt of Paid Leave Oregon does not affect an employee's seniority, eligibility for salary increases or the employee's benefit service date. The agency treats the approval of Paid Leave Oregon as if the employee is not on leave, up to the point where the employee's Paid Leave Oregon benefits exhaust. Unpaid leave may affect an employee's PERS retirement benefits.
21. Paid Leave Oregon benefits do not count as hours worked for accrued leave or overtime purposes, or toward FMLA and OFLA eligibility or entitlements.
22. Conditions which may qualify for Paid Leave Oregon leave are as follows:
- a. Family leave:
 - i. To care for a family member with a serious health condition.
 - ii. Caring for and bonding with a child in the first year after birth, adoption, or foster placement.
 - iii. Completing necessary activities before adopting a child or having a foster care child placed within an employee's home.
 - b. Medical leave:
 - i. To care for the employee's own serious health condition.
 - c. Safe leave:
 - i. To care for the employee or employee's child who are survivors of sexual assault, domestic violence, harassment, bias crimes, or stalking.
23. Family member includes the employee's spouse or domestic partner and the following:
- a. Parent (includes biological, adoptive, stepparent, foster parent, or legal guardian, or the parent of your spouse/domestic partner, or your parent's spouse/domestic partner, or in loco parentis)
 - b. Child (includes biological, adopted, stepchild, or foster child; spouse/domestic partner's child, or the child's spouse/domestic partner, or for a child for whom the employee stood in loco parentis)
 - c. Sibling or stepsibling or the sibling's or stepsibling's spouse or domestic partner
 - d. Grandparent or the grandparent's spouse or domestic partner

- e. Grandchild or the grandchild's spouse or domestic partner
- f. An individual who is related by affinity to the employee